

Neelam Sharma v. U.P. Purvanchal Vidyut Vitran Nigam

High Court of Judicature at Allahabad · Division Bench · 13 October 2014 · Writ-C No. 52927 of 2014 · **Writ disposed; connection to be processed on indemnity; civil dispute not decided.**

HEADNOTE

A pending civil title dispute is not a ground to refuse a new electricity connection. Following Smt. Sushama Chowdhary (s.43 of the Electricity Act, 2003 and the Supply Code, 2005), the Court directed that on the petitioner filing an indemnity bond, and having regard to clause 4.2 of the Code, the licensee shall take steps in accordance with law for grant of supply, without expressing any opinion on the pending declaratory suit.

FACTUAL SUMMARY

The petitioner, Neelam Sharma, sought a new electricity connection for House No. 48/133, Old Lasker Line, Old Bairhana, Allahabad from U.P. Purvanchal Vidyut Vitran Nigam. The licensee refused because of a dispute between her and one Kamlesh Kumar. A declaratory suit filed by the petitioner was pending before the Civil Judge (Senior Division), Allahabad. She invoked writ jurisdiction for a direction to grant supply.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.2

new-connection-title-dispute-indemnity

HOLDING

Where a new connection is refused because of a pending civil title dispute, clause 4.2 of the Electricity Supply Code, 2005 — applied with s.43 of the Electricity Act, 2003 as construed in Smt. Sushama Chowdhary — requires the licensee, on the applicant filing an indemnity bond, to take necessary steps in accordance with law for grant of supply. The writ court will not adjudicate the pending civil dispute. ¶ 2

PRINCIPLE TAGS

new-connection-title-dispute-indemnity

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NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PENDING CIVIL TITLE DISPUTE

No opinion on the declaratory suit between the petitioner and Kamlesh Kumar or other parties before the Civil Judge (Senior Division), Allahabad. ¶ 2

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Smt. Sushama Chowdhary v. U.P. Power Corporation Ltd.</i> Misc. Bench No. 9588 of 2014 Allahabad High Court	Section 43 of the Electricity Act, 2003 and the Electricity Supply Code, 2005 considered on grant of connection amid a title dispute.		1	Referred

